

25VECV01864 25VECV01864

County: los-angeles
Division: Civil Law and Motion
Department: I
Hearing date: 2026-09-21
Motion: PLAINTIFFS' MOTION TO ENFORCE SETTLEMENT AGREEMENT
Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CI%2C09%2F21%2F2026
Source SHA-256: a86c012f127a6f9cf18b27c721a1ac60a6dd2d43261a4e177c8fee1dde06350

Case Number: 25VECV01864 Hearing Date: September 21, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

DIANNA
SANCHEZ,

Plaintiffs,

vs.

KEOLIS TRANSIT SERVICES, LLC, ET AL.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 25VECV01864

[TENTATIVE]

ORDER RE:

PLAINTIFFS'

MOTION TO ENFORCE SETTLEMENT AGREEMENT

Dept.

I

HEARING

DATE: SEPTEMBER 21, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: APRIL

3, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On April 3, 2025, Plaintiff Dianna Sanchez filed a complaint against Defendants Keolis Transit Services, LLC, Keolis Transit America, Inc. and Eric Anthony Aguiar ("Defendants"). On July 8, 2025, Plaintiffs Diana Sanchez and Rodrigo Sanchez filed the operative First Amended Complaint ("FAC") against Defendants alleging (1) motor vehicle and (2) general negligence. Plaintiff was injured when a bus owned and operated by Defendants collided with her car.

On April

21, 2026, Plaintiff filed a Notice of Settlement of the entire action. On June 22, 2026, the Court entered a dismissal of the entire action and retained jurisdiction pursuant to Code of Civil Procedure section 664.6 to enforce the settlement.

On August

10, 2026, Plaintiff moved to enforce the settlement agreement. On September 8, 2026, Defendants Keolis Transit Services, LLC, Keolis Transit America, Inc. and Eric Anthony Aguiar filed an opposition. No reply has been filed as of September 16, 2026.

II.

LEGAL

STANDARDS

"If

parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., §664.6.)

"Section

664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (Weddington Productions, Inc. v. Flick

(1998) 60 Cal.App.4th 793, 809.) “The statute recognizes that a settlement may be summarily enforced in either of two situations: where the settlement was made orally before the trial court or where it was made in writing outside the presence of the court.” (Elyaoudayan v. Hoffman (2003) 104 Cal.App.4th 1421, 1428.) Disputes regarding the terms of the settlement (or other disputed facts) may be adjudicated on a CCP § 664.6 motion, on the basis of declarations or other evidence. (Malouf Bros. v. Dixon (1991) 230 Cal.App.3d 280, 284.) “Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

Once an action is dismissed, the court loses jurisdiction over the parties and the subject matter of the suit. (Wackeen v. Malis (2002) 97 Cal.App.4th 429, 437.) However, pursuant to CCP §664.6, “[i]f requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” Thus, a court may retain jurisdiction under CCP 664.6, notwithstanding dismissal, but only if a proper request for retention of jurisdiction is made by the parties. (Id. at 439-440 (unless parties presented trial court with a proper request to retain jurisdiction for purposes of section 664.6 motions, trial court did not have subject matter jurisdiction over action to enforce settlement post-dismissal).) In addition, the Court may dismiss without prejudice and retain jurisdiction to enforce a settlement agreement pursuant to CCP §664.6(e) if a Notice of Conditional Settlement is filed, as was done in this case.

III.

DISCUSSION

Plaintiffs move to enforce the parties' April 14, 2026 settlement agreement. Plaintiffs argue Defendants were obligated under the settlement agreement to pay Plaintiffs \$200,000 in settlement plus \$5,450 for Plaintiffs' portion of the mediation costs. Plaintiffs argue Defendants have

not paid the \$5,450 in mediation costs. Plaintiffs argue Defendants attempted to pay with a \$5,450 gift card on June 18, 2026, after Defendants stated on May 19, 2026 that they would follow up with the insurance carrier on the status of the check. Plaintiffs' counsel had no method of depositing the gift card as cash. Plaintiffs' counsel emailed defense counsel on July 9, 2026 to inform them that no check had been received and the mediation costs remained unpaid.

Plaintiffs ask the Court to enter judgment in the amount of \$5,450, plus statutory interest in the amount of 10% per annum from April 14, 2026, totaling \$176.19 through August 10, 2026 and continuing to accrue until entry of judgment. Plaintiffs also ask that the Court award them attorney's fees in the amount of \$3,000 for 3 hours of attorney time at \$1,000/hr and \$73.41 in filing fees.

In opposition, Defendants argue they are not in breach of the settlement agreement. Defendants argue the settlement agreement does not impose any deadline on their payment of the \$5,450 in mediation costs, nor did it specify a method of payment. Defendants argue they sent a prepaid card in the amount of \$5,450 on June 18, 2026. Defendants argue Plaintiffs acknowledged receipt of the card but had no method of depositing it. Defendants responded by immediately working with the insurance carrier to issue payment by check. Defendants issued a check in the amount of \$5,450 via overnight delivery to Plaintiffs' counsel on August 11, 2026, the day after this motion to enforce settlement was filed. Defendants argue the motion is moot.

Plaintiffs fail to establish breach of the settlement agreement. Plaintiffs admit that Defendants sent payment on June 18, 2026 by prepaid card. The settlement agreement does not impose any deadline or specify a method of payment for the reimbursement of Plaintiffs' \$5,450 in mediation costs. (Motion, Farrugia Dec., ¶3, Ex. A, ¶2.) As such, performance must be within a reasonable time. (The McCaffrey Group, Inc. v. Supr. Ct. (2014) 224 Cal.App.4th 1330, 1351 ("it is a well-established principle of contract law that if no time is specified for the performance of an act required to be performed, a reasonable time is allowed"); CACI No. 319.)

Defendants

attempted in good faith to pay the \$5,450 in mediation costs by prepaid card on June 18, 2026 after the carrier's internal system would not process the request to obtain a check. (Motion, Farrugia Dec., Ex. C.) Defendants contacted the carrier multiple times after Plaintiffs informed them that they had not received a check. (Id.; Opposition, Fischer Dec., ¶¶6-9.) Plaintiffs informed Defendants that the prepaid card was not acceptable on June 22, 2026 and July 9, 2026. (Motion, Farrugia Dec., Ex. C; Opposition, Fischer Dec., ¶¶6-9.) Defense counsel ultimately issued a check for \$5,450 on August 11, 2026, the day after the motion was filed. (Opposition, Fischer Dec., ¶¶6-9.)

Defendants

attempted in good faith to pay the \$5,450 on June 18, 2026 and paid by check on August 11, 2026. Defendants made the bulk of the settlement payment of \$200,000 on May 19, 2026. (Id. at ¶5.) In total, approximately two months passed from execution of the settlement agreement and attempted payment of the \$5,450 and four months passed from execution of the settlement agreement and full payment of the settlement amount, including the \$5,450 in mediation fees. Payment in full was made within a reasonable amount of time from execution of the settlement agreement on April 14, 2026 and dismissal of the action on April 21, 2026.

Defendants

also argue the motion must be denied because Defendants did not sign the settlement agreement. "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., §664.6.) "We read the statute's requirement of a writing 'signed by the parties' to require the signatures of the parties seeking to enforce the agreement under section 664.6 and against whom the agreement is sought to be enforced." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 305.) The settlement agreement was only signed by Plaintiffs and Plaintiffs' counsel. However, as noted above, the

Court in this case retains jurisdiction pursuant to subdivision (e) of section 664.6 as Notice of Conditional settlement was filed on 4/21/26.

Plaintiffs'

Motion to Enforce Settlement Agreement is denied. Plaintiffs fail to establish a breach of the settlement agreement.

IV.

CONCLUSION

Plaintiffs'

Motion to Enforce Settlement Agreement is denied.

Moving

party to give notice.

Dated: September
21, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court